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FROM COLONIALISM TO NEO-LIBERAL CAPITALISM:
LATINO/A IMMIGRANTS IN THE U.S. AND THE NEW BIOPOLITICS

Anderson Cooper, CNN: Rep. Riddle, you told my producer that pregnant women are coming here as tourist, having babies and going back home “with the nefarious purpose of turning them into little terrorists who will then come back to the U.S. and do us harm.” You say it was part of an organized terrorist element and could cost us lives. Where did you hear that?

Texas State Representative Debbie Riddle: That is information that is coming to my office from former FBI officials . . .

Cooper: What former FBI officials? I mean, what evidence is there of some sort of long term plot to have American-born babies, babies born here and be raised to become terrorists overseas and then come back here?

Riddle: Well, at this point I don’t have the hard evidence right in front of me. However, this something that is being talked about by various members of Congress, that is being looked into. This is an issue with folks not only coming across our southern border, with what is called anchor babies and coming over for entitlement programs and that sort of thing. But I think this is more sinister . . . The point that you are trying to make is about folks coming over here, having their babies when they are not here legally. Or they might have overstayed their visa, whether they are coming from south of the border or whether they are coming from Middle Eastern countries. We must protect and make sure the safety and security of the people of Texas and the folks of this country is secure. . . . And quite frankly, it is altogether possible to make a dirty bomb, stick in a suitcase, walk across our southern border and take to downtown Houston or any other city and blow it up and kill a million of more folks. . . . The fact is it is documented . . . Over 81 percent of the babies that are born at LBJ Hospital right here in Houston are born of women who are not here legally. It is well-known that women come over here, cross the border in order to have the babies here because once they get here and once that little American citizen is born and becomes an anchor baby — look, I’m a grandmother of 10, I love children, but the fact is this is breaking the back of the taxpayers of Texas and the United States. It’s taking down our health care, our education, and it is a huge, huge burden.

360 – CNN¹

Although the U.S. sees itself as the quintessential immigrant country, the promised land where immigrants can leave behind all that bound them in the old country, make themselves anew, and pursue the American Dream, history shows a more complicated and ambivalent picture. Images of the

¹See <http://www.youtube.com/watch?v=7A5Z1QnXhx8>, accessed July 17, 2012.

Statue of Liberty beckoning “huddled masses yearning to breathe free” must be juxtaposed with recurrent bouts of virulent nativism, such as the public crusades against the “Yellow Peril,” which led to the passage of the Chinese Exclusion Act (1882) and the Gentlemen’s Agreement (1907-8), effectively establishing a race-based ban on immigration from countries in Asia (other than the Philippines).²

Immigrants from Latin America, particularly from Mexico, have also experienced this ambivalence. Millions of them were actively recruited by American employers and the U.S. government itself during the Bracero Program (1942 – 1965) to deal with the acute labor shortages produced by World War II, while, almost simultaneously, many of them, including U.S. citizens of Mexican ancestry, were forcefully deported through Operation Wetback in the early 1950s, as American soldiers came back from the warfront.³ Periods of widespread xenophobia are, thus, not new in American history. However, the quest to protect the nation in the wake of 9-11 through the deployment of a sophisticated and vast array of technologies and strategies of surveillance, containment, and elimination of the dangerous Other, operating in conjunction with a persistent global economic crisis that has generated considerable dislocation, ushered in a new biopolitics of immigration.

In this article, I draw from Michel Foucault’s work on governmentality and biopolitics and Giorgio Agamben’s on the normalization of the state of exception to explore the emergence of a new transnational regime of subjectivation and population management built around the will to render visible, categorize, discipline, contain, and exclude the transgressive and mobile Other. Prominent in the category of the Other, are immigrants, particularly Latinos/as and people of Middle Eastern origin, the threatening minorities in our midst denounced by Texas State Rep. Riddle, who are represented as invaders bent on destroying the country from within through their uncontrolled fertility or as irrational terrorists seeking to blow up American society. I will argue that, while this emerging regime introduces new technologies and scales in the application of power, it reproduces the colonialism’s intense interest in the bodies of colonial subjects, which are seen as unruly and potentially uncivilizable, and thus a threat nation’s imagined unity. Like colonialism, the new transnational panopticism produces and depends on the racialization and sexualization of the subaltern. This process of “otherization” has been crucial to the dehumanization of unauthorized immigrants and their confinement in proliferating detention centers and their deportation in record numbers during the Obama Administration. In the face of the new regime, I explore whether religious movements and congregations, particularly intentional multi-racial churches, offer alternative forms of hospitality, reciprocity, and co-habitation.

Latino/a Immigration and the New Prison Industrial Complex

Following the defeat in 2007 of George W. Bush’s attempt to undertake a comprehensive overhaul of an immigration system that most agree is broken,

²Daniels (2002: 265-284).

³See Douglas Massey, Jorge Durand, and Nolan Malone, *Beyond Smoke and Mirrors: Mexican Immigration in an Era of Economic Integration* (New York: Russell Sage Foundation, 2002): pp. 24-51.

expectations were high that the incoming Obama Administration would address the issue once and for all. However, despite a recent overture to the DREAMers⁴ with the temporary implementation of the Deferred Action for Childhood Arrivals (DACA) act, which offers those who have been brought to the country as minors and who met certain other requirements a reprieve from deportation, the Obama Administration has been doubling down on enforcement as a way to prove its get-tough credentials on immigration. As of July 2012, the Obama administration had deported 1.4 million unauthorized immigrants, largely through the enforcement efforts of the Secure Communities Program.⁵ ICE removals averaged close to 400,000 annually during the Obama administration (compared to approximately 250,000/year under the Bush administration).⁶

But the duress has not only come at the federal level. States and localities have been taking matters into their own hands, formulating and passing a myriad of laws aimed at disciplining and punishing unauthorized immigrants. Just in 2009, for example, 1,500 immigration-related laws and resolutions were considered in all 50 states legislatures, with 353 ultimately enacted. According to Varsanyi (2010: 3), these laws range from those that “penalize employers who knowingly employ illegal immigrants, laws preventing undocumented residents from receiving driver’s and businesses licenses, and laws excluding undocumented students from in-state tuition benefits at public colleges.” Other local ordinances prohibit landlords from renting to unauthorized immigrants or limit the number of renters per housing unit.

The most well-known of these laws is SB 1070 in Arizona, which has inspired other copycat laws: Alabama (HB 56), Georgia (HB 87), Indiana (SB 590), Utah (HB 497 and SB 288), and South Carolina (S 20). Arguably, Alabama’s HB 56 is the most draconian of these laws. Like SB 1070, HB 56 requires employers to use

⁴The DREAMers are unauthorized immigrants who were brought to the U.S. as children. Numbering approximately 1.4 million, they are known as DREAMers because they would benefit from passage of the Development Relief and Education of Alien Minors (DREAM) Act. In June of 2012, the Obama administration offered many of these DREAMers a two-year renewable reprieve from deportation through the Deferred Action for Childhood Arrivals (DACA) initiative.

⁵Suzy Khimm, “Obama is deporting immigrants faster than Bush. Republicans don’t think that’s enough,” *The Washington Post*, August 27, 2012. <http://www.washingtonpost.com/blogs/ezra-klein/wp/2012/08/27/obama-is-deporting-more-immigrants-than-bush-republicans-dont-think-thats-enough/?print=1> (Accessed on September 18, 2012). The Secure Communities program was intended to identify and remove “criminal aliens” by allowing local police in participating jurisdictions to check the immigration status of anyone arrested against the Department of Homeland Security’s database. While the program was meant to target dangerous criminals, in practice it has been applied to anyone who has committed even minor offenses, such as speeding or driving with a broken turn signal. It has also led to widespread racial profiling (“driving while brown”). See http://www.law.berkeley.edu/files/Secure_Communities_by_the_Numbers.pdf, accessed October 13, 2013.

⁶“ICE Total Removals,” <http://www.ice.gov/doclib/about/offices/ero/pdf/ero-removals1.pdf> (Accessed on September 21, 2012). U.S. Department of Homeland Security, “Immigration Enforcement Actions: 2010,” June 2011, <http://www.dhs.gov/xlibrary/assets/statistics/publications/enforcement-ar-2010.pdf> (Accessed on October 8, 2012).

E-Verify to check employees' immigration status and deputizes the police to check the status of anyone they stop if they suspect that the person is in the country without proper authorization. However, the Alabama law goes beyond SB 1070, ordering public elementary, middle, and high schools to ascertain the immigration status of students upon enrollment and report the number of unauthorized immigrants to state education officials. Furthermore, it criminalizes the act of harboring, transporting, or assisting undocumented immigrants.

HB 56 has had a dramatic effect on Alabama's unauthorized immigrant community. In a panic, many parents have taken their children, many of them U.S. citizens, out of school and fled with their meager belongings to other states such as Texas, Tennessee, and Florida. According to Rev. Paul Zoghby, pastor at St. Margaret of Scotland Church, a church with a large Latino congregation, "This is the saddest thing I have experienced in my 18 years as a priest We've already lost 20 percent of the congregation in the past few weeks, and many more will be gone by next week. It is a human tragedy."⁷

Indeed, beyond the breakdown of families and the dismemberment of local communities, churches have been particularly concerned with the provision of the law that would criminalize transporting or assisting unauthorized immigrants, seeing it as interference with their core pastoral work. In response, four bishops – Methodist, Episcopalian, and Catholic – sued the state of Alabama. Calling the law "the nation's most merciless anti-immigration legislation," and arguing that, "If enforced, the Law will place Alabama church members in the untenable position of verifying individuals' immigration documents before being able to follow God's Word to 'love thy neighbor as thyself' (Matthew 22:39)."⁸

When Alabama State Rep. Micky Hammon was asked about the goal behind HB 56, which he co-sponsored, he stated that the law was intended "to attack every aspect of an illegal alien's life . . . so they will deport themselves."⁹ This strategy goes by the euphemism of "self-deportation" or the more technocratic label "attrition through enforcement," both of which appeared during the 2012 presidential debates. I will come back to this notion of aggressively targeting "every aspect of an illegal alien's life" when I argue that what is at work here is the emergence new forms of bio-power.

The focus on enforcement has gone hand-in-hand with a strong emphasis on detention. According to Detention Watch Network, "in 2001, the U.S. detained approximately 95,000 individuals. By 2009, the number of individuals detained

⁷See http://www.washingtonpost.com/local/a-tough-new-alabama-law-targets-illegal-immigrants-and-sends-families-fleeing/2011/10/07/gIQAtZuPWL_story.html, accessed October 15, 2012

⁸Courthouse News Service, "Bishops Say Alabama's Harsh Immigration Law Would Criminalize Religious Sacraments," August 4, 2011, <http://www.courthousenews.com/2011/08/04/38714.htm> (Accessed on November 3, 2012).

⁹See <https://www.aclu.org/blog/immigrants-rights/alabama-under-siege-human-costs-hb-56>

annually in the U.S. grew to approximately 380,000 – this despite the fact that overall crime was down. The average daily population of detained immigrants has ballooned from approximately 5,000 in 1994, to 19,000 in 2001, and to over 30,000 by the end of 2009.”¹⁰ Many of the 350 detention facilities in the U.S. are run by giant private corporations, such as Corrections Corporation of America (CCA), The Geo Group, and Management & Training Corporation (MTC). These facilities are operated at an annual cost to the tax payer of more than \$1.7 billion, with private corporations receiving from Homeland Security as much as \$122 per day for each immigrant they hold. Even with the drop in crime rates, the protracted economic crisis notwithstanding, for 2010, CCA and GEO reported annual profits of \$1.69 billion and \$1.17 billion respectively. With so much money at play, private corporations running detention centers aggressively lobby sympathetic politicians at the local, state, and federal levels to pursue an enforcement solution to the dilemmas of unauthorized immigration. In fact, lobbyists for CCA played a major role in drafting SB 1070 in Arizona. To characterize these transnational penal conglomerates, sociologist Tamara Nopper (2008) uses the term “prison industrial complex.” This complex developed and perfected penal practices and institutions that targeted disproportionately African-Americans during the war on drugs. It is now extending its reach to unauthorized immigrants, expanding and hardening what Michelle Alexander has called the “New Jim Crow.”¹¹

The New Transnational Panopticon

How do we explain all these phenomena? Perhaps we can begin find an answer to this question in Foucault’s lectures on governmentality at the Collège de France. In these lectures, he identifies the emergence of a new power over life in the 17th and 18th centuries that played a central role in the rise of unified, territorially-bound nation-state. This “biopolitics” included “devices . . . used to ensure the spatial distribution of individual bodies (their separation, their alignment, their serialization, and their surveillance) and the organization around those individuals, of a whole field of visibility. They were also techniques that could take control over bodies.”¹² According to Foucault, this new “anatomy-politics” emerged at first piecemeal, in hospitals, asylums, schools, army barracks, and factories, eventually articulating a constellation of overlapping networks operating simultaneously in two fronts:

One technique is disciplinary: it centers on the body, produces individualizing effects, and manipulates the body as a source of forces that have to be rendered both useful and docile. And we also have a second technology which is centered not upon the body but upon life: a

¹⁰See <http://www.detentionwatchnetwork.org/node/2381>, accessed July 14, 2012.

¹¹According to Alexander, “the United States now has the highest rate of incarceration in the world, dwarfing the rates of nearly every developed country, even surpassing those in highly repressive regimes like Russia, China, and Iran. In Germany, 93 people are in prison for every 100,000 adults and children. In the United States, the rate is roughly eight times that, or 750 per 100,000.” In Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: New Press, 2010), p. 6.

¹² Michel Foucault, “Society must be Defended.” *Lectures as the Collège de France, 1975-76* (New York: Picador, 2004), p. 242.

technology which brings together the mass effects characteristic of a population, which tries to control the series of random events that can occur in a living mass, a technology which tries to predict the probability of those events (by modifying it, if necessary), or at least to compensate for their effects.¹³

In other words, while biopolitics involved processes of subjectivation, the training of particular bodies, its main domain of intervention is populations, that is, internal threats to the integrity and well-being of the modern, sovereign nation-state, threats to public safety and hygiene produced from within by indigent and unemployed populations increasingly concentrating in cities as part of the process of rapid industrialization. The goal was the control of the conduct of citizens through the production knowledge about "life," about sexuality and health, such as data about birth and mortality rates and the prevalence of illnesses. Driving this quest for control was a widespread fear of social chaos, loose morals, pollution, and death. "[E]verywhere you see this stimulation of the fear of danger which is, as it were, the condition, the internal psychological and cultural correlative of liberalism. There is no liberalism without a culture of danger."¹⁴

Foucault dramatized the rise of the modern "normalized society" through the trope of the panopticon, a building devised by Jeremy Bentham to ensure "a surveillance which would be both global and individualizing," rendering bodies, "their gestures and all their daily actions," completely visible "under a system of centralized observation." In that sense, "Bentham was the complement to Rousseau." Both pursued modernity's dream "of a transparent society, visible and legible in each of its parts, the dream of there no longer existing any zones of darkness . . . zones of disorder."¹⁵ With his panopticon, Bentham is offering an architecture and spatial "project of a universal visibility which exists to serve a rigorous, meticulous power."

Foucault operated with a methodological nationalism that did not allow him to see the transnational and global dimensions of biopolitics. Nor did he theorize about borders and their role in consolidating the identification of territory with imagined communities.¹⁶ I argue that we may be witnessing the rise of a new bio-politics, a new transnational, flexible panoptical regime that seeks to manage unruly flows that are part and parcel of the current phase of globalization. Just as in the 18th century, the consolidation of a liberalism based on the sovereign-yet-normalized nation and self was predicated on fear, so is the contemporary neo-liberal (trans)national order driven by a "liquid fear," a fluid and ubiquitous fear of a "wholly negative globalization." "The spectre of vulnerability hovers over 'the negatively globalized' planet," bringing "to most minds the terrifying

¹³ Ibid., p. 249.

¹⁴ Michel Foucault, *The Birth of Biopolitics: Lectures as the Collège de France, 1978-79* (New York: Palgrave, 2008), pp. 66-67.

¹⁵ Michel Foucault, *Power/Knowledge: Selected Interviews and Other Writings* (New York: Pantheon, 1980), p. 146, 152.

¹⁶ See William Walters, "Foucault and Frontiers: Notes on the Birth of the Humanitarian Border." *Governmentality: Current Issue and Future Challenges*, edited by Ulrich Bröckling, Susanne Krasmann, and Thomas Lemke (New York: Routledge, 2011): pp. 138-164.

experience of heteronomous, vulnerable populations overwhelmed by forces they neither control nor truly understand, horrified by their own undefendability and obsessed with security of their borders and of the population inside them . . ."¹⁷

In particular, this regime attempts to regulate mobile populations under a rigid illegal-legal binary logic and according to a dialectic of visibility and invisibility: unauthorized immigrants must become simultaneously visible to the gaze of local, state, and federal authorities and invisible through exclusion from public and civic spaces, from schools, hospitals, and roads. Since 9-11, nation-states, particularly those at the core of neo-liberal capitalism, have re-doubled their efforts to render the mobile and potentially unruly Other hyper-visible as part and parcel of a new global politics of alterity. The target of the new multi-scalar regimes of governmentality is the traveling stranger who, in the midst of widespread processes of de-territorialization and re-territorialization brought about by globalization in its multiple dimensions, is no longer containable within the spaces of Western modernity, more specifically, the spaces of secularity (in the case of Muslims) and the spaces of the nation as a bound and culturally-homogenous container.

Because many immigrants sustain transnational livelihoods in order to navigate economic uncertainty and political turmoil, because many of them are simultaneously embedded in their societies of origin and settlement, building relations, commitments, and loyalties across borders, the nation-state has intensified its attempts to mark clear borders and to narrow the parameters of citizenship.¹⁸ Castles and Miller recognize that there have been larger migration movements in history – for example, at the turn of the 20th century. However, a “defining feature of the [present] age of migration is the challenge posed by international migration to the sovereignty of states, specifically to their ability to regulate the movements of peoples across their borders. The extensiveness of irregular (also called undocumented or illegal) migration around the world has probably never been greater than it is today.”¹⁹ As a result of this challenge to the modern principle of sovereignty, Zembylas (2010) argues that immigrants, refugees, and asylum seekers have become key figures in a new “fearism”²⁰ that enables their complete de-humanization as a way to deny them any right to dwell among juridical citizens.

¹⁷ Zygmunt Bauman, *Liquid Fear* (Cambridge: Polity, 2006), p. 96.

¹⁸Basch, Glick Schiller, and Szanton Blanc (1994: 7) define transnationalism as those “processes by which immigrants forge and sustain multi-stranded social relations that link together their societies of origin and settlement. We call these processes transnationalism to emphasize that many immigrants today build social fields that cross geographic, cultural, and political borders.”

¹⁹ Stephen Castles and Mark J. Miller, *The Age of Migration: International Population Movements in the Modern World*. Fourth Edition (New York: Guilford Press, 2009), p. 2.

²⁰ See Michalinos Zembylas, “Agamben’s Theory of Biopower and Immigrants/Refugees/Asylum Seekers. Discourses of Citizenship and the Implications for Curriculum Theorizing.” *Journal of Curriculum Theorizing* v26n2 (2010): pp. 31-45. Zembylas borrows the term from Fisher, who defines it as “a process and a discourse hegemony [which] creates the experience of fear that is normalized . . . keeping the cultural matrix of ‘fear’ operative and relatively invisible.” See R. M. Fisher, “Invoking ‘Fear’ Studies.” *Journal of Curriculum Theorizing* v22n4 (2006): p. 51.

In response to fearism, we observe pervasive processes of “rebordering,” especially in the U.S. and Europe.²¹ Whereas borders “have long been associated with the military defense of the national territory from opposing, often neighbouring armies . . . [and] have a history as privileged sites of commercial regulation . . . today . . . borders are becoming more and more important . . . as spaces and instruments for the policing of a variety of actors, objects and processes whose common denominator is ‘mobility’ . . . or more specifically, the forms of social and political insecurity that have come to be discursively attached to these mobilities.”²² Accompanying this rebordering, there has been an explosive “growth of detention structures along transnational routes traveled by migrants in their journeys through northern Africa, Eastern Europe, Indonesia, and Central America to countries where they hope to make asylum claims.”²³

What makes possible the emergence of a new panopticon largely invisible search for hyper-visibility is the application of a “paradigm of suspicion that conflates the perceived threats of crime, immigration, and terrorism ([as] . . . ‘integrated risk management’)” through advanced, virtual technologies of biosocial profiling.²⁴ The neo-liberal state’s new technologies of power to regulate mobility and belonging are no longer just the militarization and securitization of borders and the development and application of new biometric technologies (like Secure Communities), which allow “data mining” and the deployment of a new “nano-physics” power that penetrates to the deepest capillaries of everyday life, with far finer granulation and more pervasive reach than the micro-physics of power that Foucault described.²⁵ This is precisely what Alabama State Representative has in mind when he affirms that HB 56 was designed to “attack every aspect of an illegal alien’s life.”

Building on Foucault and pointing to Abu Ghraib and the on-going war on terror, which had been characterized by practices such as extraordinary

²¹ This is not to say that there are no processes of “debordering,” as the formation of the EU shows. Rumford is correct when he argues that “[c]ontemporary borders are increasingly differentiated” and that “one problem with the ‘rebordering’ thesis . . . is that it relies on a rather undifferentiated notion of borders. . . . In fact, borders are not singular and unitary and are designed to encourage various kinds of mobility, particularly for certain categories of immigrants, migrant workers and students.” In Chris Rumford, “Theorizing Borders.” *European Journal of Social Theory* v9n2 (2006): p. 157. However, when it comes to Latin American, African, and Muslim immigrants, U.S. borders overwhelmingly operate with a policing logic.

²² William Walters, “Border/Control.” *European Journal of Social Theory* v9n2 (2006): p. 188.

²³ Alison Mountz, et al. “Conceptualizing Detention: Mobility, Containment, Bordering, and Exclusion.” *Progress in Human Geography* v37n4 (2013): p. 523. See also the Global Detention Project: <http://www.globaldetentionproject.org/>, accessed October 13, 2013.

²⁴ Ronen Shamir, “Without Borders? Notes on Globalization as a Mobility Regime.” *Sociological Theory* v23n2 (2005): p. 200.

²⁵ On borders, immigration, and biometrics, see Louise Amoore, “Biometric Borders: Governing Mobilities in the War on Terror.” *Political Geography* v25n3 (2006): 336-351 and Charlotte Epstein, “Guilty Bodies, Productive Bodies, Destructive Bodies: Crossing the Biometric Border.” *International Political Sociology* v1n2 (2007): 149-164. Given the complexity of the issues involved and the unfolding story, I have chosen not to discuss the revelations about the scope of National Security Agency surveillance programs. See <http://www.theguardian.com/world/the-nsa-files>, accessed October 13, 2013.

rendition, Giorgio Agamben contends that concentration camp cannot be considered just as “a historical fact and an anomaly belonging to the past . . . but in some way as the hidden matrix and nomos of the political space in which we are still living.”²⁶ The sovereign is no longer he who can call forth particular subjects through disciplinary techniques or who can manage the productive and reproductive corporeal capacities of a population, but he “who decides on the state of exception,” that is, he who can legally strip off all the rights of individuals, reducing them to “bare life,” as it is done in the concentration camp. To characterize these individuals, Agamben summons from ancient Roman law the figure of “*homo sacer*,” the (accursed) non-person who “has been excluded from the religious community and from all political life: he cannot participate in the rites of his *gens*, nor . . . can he perform any juridically valid act.”²⁷ *Homo sacer* is “pure *zoē*,”²⁸ “his entire existence is reduced to a bare life stripped of every right by virtue of the fact that anyone can kill him without committing homicide.”²⁹

Homo sacer is not just the suspected terrorist indefinitely detained in Guantánamo or water-boarded in an undisclosed location in a third country. In many ways, the hundreds of thousands of undocumented immigrants “lost” in the proliferating detention centers, separated from their families, moved around with no notice, instantaneously deportable, and with no right to legal council also approximate the existential condition of *homo sacer*.

Post-Colonial Continuities and Ruptures

While there are clear differences in the scale, intensity, extensity, and technologies of the emerging transnational panopticon in comparison to those of previous regimes of visibility, important continuities help explain the ways in which undocumented Latino immigrants have been otherized. Edward Said noted that one of the ways in which European scholars “denied their coevalness”³⁰ with the Orient was by typifying the “Oriental” as “irrational, depraved (fallen), childlike, ‘different’ . . . [while] European [was] rational, virtuous, mature, and ‘normal’.”³¹ Moreover, demonstrating how the production of the Oriental other in colonialism was inextricably related to the process of imaging the nation-state as homogeneous, normalized communities, Said observed how the Oriental was “linked . . . to elements in Western society

²⁶ Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life* (Stanford: Stanford University Press, 1998), p. 166.

²⁷ *Ibid.*, p. 183.

²⁸ Agamben distinguishes between two terms in Greek that denote life. *Bios* is human life as understood by the polis, as invested with purpose and value, while *zoē* is just bare life in its naked physicality.

²⁹ *Ibid.*, p. 183.

³⁰ Anthropologist Johannes Fabian used this term to describe “a persistent and systematic tendency to place the referent(s) of anthropology in a Time other than the present of the producer of anthropological discourse.” In *Time and the Other: How Anthropology Makes its Object* (New York: Columbia University Press, 1983), p. 31. Denial of coevalness was not simply an epistemological and political strategy that allowed the Western anthropologist to set himself as an authority on primitive cultures, but it was a practice constitutive of colonialism.

³¹ Edward Said, *Orientalism* (New York: Vintage Books, 1978), p. 40.

(delinquents, the insane, women, the poor) having in common an identity best described as lamentably alien. Orientals were rarely seen or looked at; they were seen through, analyzed not as citizens, or even people, but as problems to be solved or confined or – as the colonial power openly coveted their territory – taken over.”³² The invisibility of Orientals as subjects and their hypervisibility as deviants was genderized and racialized. Orientalism was “a peculiar (not to say invidiously) male conception of the world. . . . like so many professional guilds during the modern period, it viewed itself and its subject matter with sexist blinders . . . [Oriental] women are usually the creatures of a male power-fantasy. They express unlimited sensuality, they are more or less stupid, and above all they are willing.”³³

Building upon Said, other postcolonial scholars have pointed to the extent the bodies of women have been “the subject of concern, scrutiny, anxiety, and surveillance” by colonial administrators and state apparatuses. “Whether it was native Indian women’s sexuality that caused concern for a colonizing Catholic Church in colonial Mexico or that of Japanese women under postwar U.S. military occupation, the female body has gotten – and kept – the attention of imperial officials in ways that demonstrate how crucial its management was believed to be for social order and political stability.”³⁴

As Sylvester Johnson demonstrates, *Religionswissenschaft* played an important part in a dialectic of somatophobia and somatophilia. Just as Western scholars were disembodied their religions to constitute them as “World Religions,” carriers of a universal wisdom expressed in great sacred books, they were intensely interested in the bodily practices that they saw as the essence of primitive indigenous religions. Thus, “the study of non-whites . . . has repeatedly centered attention on the body, bodily rituals, and material structures and objects. Studying these primitives or savages meant interpreting not only their phenomenological world. It was also a foundational strategy for rendering primitives as such, as people of the body. The primitive performed religion, executed rituals, consumed and excreted religious matter, fashioned sacred objects. The primitive was marked by physic-kinesthetic reasoning and unbridled sexual instinct, more body and brute force than brain and intellect.”³⁵

Rhadika Mohanram makes a similar point when she argues that, for European colonizers, colonialism involved the “embodiment of disembodiment”: the European presents itself as the universal subject, existing in a “metaphysical space,” “a subject who is able to take anyone’s place, to occupy any place . . . [so that the] Caucasian is disembodied, mobile, absent of the marks that physically

³² Ibid., p. 207.

³³ Ibid.

³⁴ Tony Ballantyne and Anoinette Burton, “Introduction: Bodies, Empires, and World Histories.” In *Bodies in Contact: Rethinking Colonial Encounters in World History* (Durham, NC: Duke University Press, 2005), p. 5.

³⁵ Sylvester Johnson, . “The Rise of the Nacirema and the Descent of European Man: A Response to Manuel Vásquez’s *More than Belief. Method & Theory in the Study of Religion* v24n4-5 (2012): p. 476.

immobilize the native.”³⁶ Ann Stoler has shown how this embodiment of disembodiment involved not only a “racialized politics of classification,” but an “education of desire,” a “sentimental education” that regulated domestic arrangements and intimate affective ties. “When Dutch children in the colonial Indies were forbidden to play with the children of servants because officials thought they might become too comfortable ‘babbling and thinking in Javanese,’ when Javanese nursemaids were instructed to hold their charges away from their bodies so that infants would not ‘smell their sweat,’” the goal was to “ensure that European children in the colonies learned the right social cues and affiliation – and did not ‘metamorphize’ into the Javanese.”³⁷

In contrast to the de-materialized white body, the native was constructed as provincial, static, bound by his/her sheer physicality (i.e., his/her race and sexuality) and by the incapacity to rise intellectually above the ecology that determines him/her. In light of globalization’s widespread processes of de-territorialization that have displaced vast populations from the peripheries to the metropolises, the current regime of visibility seems to be altering the racial and gender dynamics associated with power asymmetries between mobility and settlement. While cosmopolitanism is still the privilege of the wealthy few, it is increasingly the case that Europeans and North Americans claim autochthony, the right to include and exclude in the territorialized nation-state, while migrants from the “global South” are seen as the disorderly displaced Other. The task then is not only to curtail the mobility of the traveling Other across porous national border but to re-ground him/her, either by deporting him/her to her country of origin or by incarcerating him/her in isolated penal archipelagos.

It is in this context that we can read Representative Riddle’s fear of the Latina illegal breeder, the hyper-fertile producer of “anchor babies,” who not only comes in to exploit the First World’s generous welfare system. More sinisterly, illegal Latina women also violate national borders to take advantage of the principle of *jus soli* enshrined in the Fourteenth Amendment of the U.S. Constitution, giving birth to American citizens, who could then enable them to secure their own naturalization. Never mind that the children could not petition for a regularization of status until they turn twenty-one and that, even then, the waiting period might be ten years or longer.

In Riddle’s vision, illegal breeders are the frontline of a raising “brown tide”³⁸ that threatens to wash away the Anglo-Protestant core values that define the

³⁶ Radhika Mohanram, *Black Body: Women, Colonialism, and Space* (Minneapolis: University of Minnesota Press, 1999), p. 15.

³⁷ Ann Laura Stoler, *Carnal Knowledge and Imperial Power: Race and the Intimate in Colonial Rule* (Berkeley: University of California Press, 2005), p. 6. Along the same lines, Collingham (2001) borrows from Norbert Elias’s notion of the “civilizing process” to describe the production of Britishness through “bodily closure,” the inculcation of self-restraint and norms of cleanliness and decorum in the face of the carnality of the natives and the torpor-inducing nature of the Tropics. This process allowed the British to legitimize “their rule by re-casting themselves as the embodiment of racial superiority, pre-ordained to rule over the Indians, trapped as they were within their racially inferior bodies.” In E. M. Collingham, *Imperial Bodies: The Physical Experience of the Raj, c.1800-1947* (Cambridge: Polity, 2001), p. 8.

essence of America. According to Samuel Huntington, just as contemporary geopolitics is defined by a clash of civilization between a Christian, democratic, cosmopolitan West and an authoritarian, provincial, and patriarchal Islamic cultural bloc, there is an internal clash of civilization threatening the future of the U.S., a clash generated by a rapidly growing Latino population that refuses to assimilate, to speak English, to surrender their transnational attachments. By concentrating in particular regions, this minority threatens to break the country apart.³⁹ Building on this narrative, former Republican presidential candidate Patrick Buchanan argues in *State of Emergency* that because most of these illegal breeders are Mexicans, they are the foot soldiers in a *reconquista*, the attempt to claim the territories that Mexico lost in the Mexican-American war, following the Guadalupe Hidalgo Treaty in 1848. These illegal breeders are preparing the ground for a "return to Aztlan," the Mexicas' mythical ancestral home. Buchanan asks: "Will the American Southwest become a giant Kosovo, a part of the nation separated from the rest by language, ethnicity, history, and culture, to be reabsorbed in all but name by Mexico from whom we took these lands in the time of [Andrew] Jackson and [James] Polk? Chicano chauvinists and Mexican agents have made their intent clear to take back through demography and culture what their ancestors lost through war."⁴⁰

The sexualization Latinas has a long history, going as far back as the 1940s, when Hollywood gave us Carmen Miranda, the "Brazilian Bombshell" (even though she was born in Portugal), with her massive fruit headdress and her bare midriff and gyrating hips. In fact, one of the most enduring images of Latinas is the exotic, hot-blooded, hyper-sexual, curvaceous tease. Aparicio and Chávez-Silverman use the term "tropicalism" as an "etymological correlative" of Said's Orientalism to denote a disciplined (in the sense of that it is constructed through a power-knowledge nexus) and hegemonic-yet-contested "geocultural" gaze that constitutes Latin American and Latino identities through a doubly imagined prism: of the imagined tropics and of the tropics as over-determined by an imagined Caribbean.⁴¹ To quote Valdivia, to tropicalize Latin Americans and Latino immigrants is to locate them in a landscape of "near-turquoise-colored ocean waters; hot, nearly combustible color such as fuchsia, neon yellow and green; tropical foliage such a palm trees and colorful ginger lilies; audio components of salsa, mambo, or merengue [samba, I might add]; sexualized situations and people, especially but not exclusively women."⁴² Shohat and Stam argue that tropicalism carries an "agricultural reductionism,"⁴³ which associates Latin American women with nature, so that Carmen Miranda's bare midriff and gyrating hips come to stand for the tropics, the "torrid zone" of the America, a

³⁸ See Otto Santa Ana, *Brown Tide Rising: Metaphors of Latinos in Contemporary American Public Discourse* (Austin: University of Texas Press, 2002).

³⁹ See Samuel Huntington, *Who are We? Challenges to America's National Identity* (New York: Simon & Shuster, 2004).

⁴⁰ Patrick Buchanan, *State of Emergency: The Third World Invasion and Conquest of America* (New York: St. Martin's Press, 2006), p. 12.

⁴¹ See Frances Aparicio and Susana Chávez-Silverman, "Introduction." *Tropicalizations: Transcultural Representations of Latinidad*, edited by F. Aparicio and S. Chávez-Silverman (Hanover, NH: University Press of New England), pp. 1-17.

⁴² Angharad Valdivia, *Latinas/os and the Media* (Cambridge: Polity, 2010), p. 106.

⁴³ See Ella Shohat and Robert Stam, *Unthinking Eurocentrism: Multiculturalism and the Media* (New York: Routledge, 1994).

zone whose fertility can be exploited to satisfy colonial desires.⁴⁴ After all, Miranda served as the model for United Fruit's Chiquita Banana.

Post-9-11 and in the context of the global economic crisis, Latinas' bodies, their sexuality, are no longer represented by the alluring hips of Shakira, but by the fertile hips of illegal breeders who are giving birth to a brown, Spanish-speaking wave of invaders, a matter of national security. This is precisely what Foucault refers to as "biopolitics," the power over the control of life, which is part and parcel of the development of the territoriality-bound modern, liberal state. "Biopolitics deals with the population, with the population as political problem, as a problem that is at once scientific and political, as a biological problem and as power problem."⁴⁵ Applying the notion of biopolitics, we see that:

The biological reproduction of Latinas combines with their social reproduction in the popular imagination to produce fears about Latino population as a threat to the nation – that is, "the American people," as conceived in demographic and racial/ethnic terms. This threat materializes not merely because of Latino population growth, but also because Latino babies transgress the border between immigrants and citizens. It is here that the metaphor of leaky national borders converges with that of porous bodies (producing bodies) and the permeable category of citizenship.⁴⁶

Post-9-11 transformations are not restricted to the image of Latinas. The perception of Latinos, particularly of young Latinos, has also undergone significant changes. The classical figure of the greasy *bandido*, who was a threat to the civilizing project behind Manifest Destiny as America expanded westward, has been replaced by that of the violent gang member and amoral drug dealer who represents not only a national security threat but clear-and-present danger to the safety of small-town America. A stark example of this transformation is a political ad that Republican candidate Sharron Angle ran in Nevada during the 2010 elections, as she challenged Harry Reid, the Senate's majority leader, with support from the Tea Party. The ad, known as "The Wave," begins with grainy images of the U.S.-Mexico border that dissolve into a shadowy alley, where a group of young, dark-skinned men dressed in the fashion of gang members advance menacingly, as a white family frets. The narration booms: "Waves of illegal aliens streaming across our border, joining violent gangs, forcing families to live in fear. And what is Harry Reid doing about it? Voting to give illegal aliens social security benefits, tax breaks, college tuition. Voting against declaring English our national language . . . twice." The images of young Latinos wearing bandanas and sporting tattooed chests and gold chains, as if posing for a police mug shot, fill the screen, followed by the faces of little blue-eyed girls seated in a circle in front of their teacher. The narration continues: "And even siding with Obama and the president of Mexico to block Arizona's

⁴⁴ Shari Roberts, "The Lady in the Tutti-Frutti Hat: Carmen Miranda, a Spectacle of Ethnicity." *Cinema Journal* v32n3 (1993): 3-23.

⁴⁵ Foucault, "Society must be Defended", p. 245.

⁴⁶ Leo Chavez, *The Latino Threat: Constructing Immigrants, Citizens, and the Nation* (Stanford: Stanford University Press, 2008), p. 72.

tough immigration law. Harry Reid . . . It's clear whose side he on and it's not yours."⁴⁷

The juxtaposition of scowling, criminal young Latinos and innocent Euro-American girls seeks to trigger a visceral reaction. Just as Latinas are hypersexualized as illegal breeders, Latinos are portrayed as sexual predators who threaten to sully the most sacred elements of moral fabric of America: her families and English as the national language. The metaphor of the invading colored hordes crashing onto America's shores or violating her borders has surfaced periodically, as the panic over the "Yellow Peril" at the end of the 19th century shows. Then, as today, the fear was that low-class non-white immigrants come in or reproduce in such large numbers that the country would not be able to digest them. As a result, they would take over the social body, as if they were an unchecked exotic pest or some sort of virulent disease. This is why "society must be defended," to quote Foucault.

Recently, during a hearing with health care officials, Tennessee's State Senator Todd Curry asked if patients have to show proof of citizenship before getting state-funded pre-natal care. When he was told that officials were not required since unborn children become automatically U.S. citizens when they are born, Curry remarked that "they [illegal aliens] can go out there like rats and multiply, then." In equating unauthorized Latino immigrants with rats, Curry brings to mind an advertisement for a pesticide at the height of the public hysteria against Chinese immigrants. It depicts a "coolie" eating a live rat, while carrying another one in his hand. The legend reads: "rough on rats; they must go." The "they" refers not only to the rats but to Chinese immigrants, who are familiar enough with rats to eat them. In fact, they might have brought the rats in the first place. The feeling of being "reduced to a bare life stripped of every right by virtue of the fact that anyone can kill him without committing homicide" is internalized by the immigrant themselves and they become "their own jailers," as Foucault puts it. One Chinese immigrant in San Francisco in 1870s declared that he was "simply terrified" and afraid that he might be "shot in the back" if he ventured into the street after nightfall. "Children spit upon us as we passed by and called us rats."⁴⁸

The foregoing discussion then points to the need to study the continuities between colonialism's regime of visibility and the emerging neo-liberal transnational panopticon. In particular, we must consider the shared spatial and temporal strategies of distantiation and the dialectics of somatophobia and somatophilia that enable both to otherize, whether it be the colonized or the migrant. Nevertheless, we also have to examine the new practices, institutions, and media involved in the emerging global biopolitics, which allow the exercise

⁴⁷See <http://www.youtube.com/watch?v=tlkNAA2y4I4>, accessed July 17, 2012.

⁴⁸Cited in June Granatir Alexander, *Daily Life in Immigrant America, 1870-1920* (Chicago: Ivan R. Dee, 2007), p. 95). Noting the striking similarities in the derogatory tropes used to refer to immigrants from Asia during the late 1800's and Latinos and people of Middle Eastern descent today, Lee claims that "brown is the new yellow." In Robert G. Lee, "Brown is the New Yellow: the Yellow Peril in an Age of Terror." *Race, Nation and Empire in American History*, edited by J. Campbell, M. Pratt Guterl, and R. Lee. (Chapel Hill: University of North Carolina Press, 2007), pp. 335-351.

of power at multiple scales, from the body and everyday life to global and transnational scales. Only this comparative, historically informed analysis can help us understand the specificities and challenges of the present age.

Religion and Decoloniality: Toward Alternative Forms of Visibility

One of the sharpest criticisms of Foucault focuses on his reading of Bentham's panopticon as a privileged window into the dynamics of power in modernity: this vision of power leaves little space for resistance. Biopower penetrates so deeply into the crevices of sociality, constituting subjects out of docile bodies, that there is no innocent position from which to critique and reject it. As Fredric Jameson puts it, Foucault is captive to a "winner-loses" logic:

. . . the more powerful the vision of some increasingly total system or logic . . . the more powerless the reader comes to feel. Insofar as the theorist wins, therefore, by constructing an increasingly close and terrifying machine, to that degree he loses, since the critical capacity of his work is thereby paralyzed, and the impulses of negation and revolt, not to speak of those of social transformation, are increasingly perceived as vain and trivial in the face of the model itself.⁴⁹

This reading of Foucault is not entirely on target, since he was very explicit about the fact that "where there is power, there is resistance."⁵⁰ In other words, power is always contingent, relational, and fragile, particularly at the terminal points where it is directly applied to the body. Power's "existence depends on a multiplicity of points of resistance: these play the role of adversary, target, support, or handle in power relations. These points of resistance are present everywhere in the power network. Hence there is no single locus of great Refusal, so soul of revolt, source of all rebellions, or pure law of the revolutionary. Instead there is a plurality of resistances . . ."⁵¹ This is why Foucault recommended an "ascending analysis of power," which would start from "its infinitesimal mechanisms, which have their own history, their own trajectory, their own techniques and tactics, and then see how these mechanisms of power have been – and continue to be – invested, colonized, utilized, involuted, transformed, displaced, extended, etc. by more general mechanisms and forms of global domination."⁵² An ascending analysis would allow the critical theorist and activist to identify the weak spots in the articulation power networks, the "mobile and transitory points of resistance,"⁵³ positioning her/himself in ways that would allow the de-centering of hegemonic power configurations.

⁴⁹ Fredric Jameson, "Postmodernism, or, the Cultural Logic of Late Capitalism." *New Left Review* 147 (1984), p. 57.

⁵⁰ Michel Foucault, *The History of Sexuality. Volume I: An Introduction* (New York: Vintage Books, 1978), p. 95.

⁵¹ *Ibid.*, pp. 95-96.

⁵² Michel Foucault, *Power/Knowledge: Selected Interviews and Other Writings* (New York: Pantheon, 1980), p. 99.

⁵³ Foucault, *The History of Sexuality*, p. 96.

Nevertheless, Jameson raises a good point in his critique of Foucault's disciplinary society: along with the diagnosis of forms of domination, there needs to be sustained work on resistances. Otherwise, the diagnosis of contemporary forms of power, such as the state of exception, runs the danger of losing its critical edge. With this insight, I would like to close this article with some reflections on the possibility of alternative forms of visibility, identity, and sociality that may be, if not in direct opposition to the emerging transnational panopticon, at least in tension with it. Moreover, I would like to explore briefly the potential for grassroots religious networks to disrupt the appropriation, redeployment, and reinforcement of colonial power asymmetries by contemporary global capitalism.

For the past few years, I, along with an interdisciplinary research team, have been studying religious congregations, both "ethnic" and multiracial in new immigrant destinations. In these places, where newly arrived immigrants, many of them unauthorized, often do not find long-established networks of social support and are frequently met with open hostility from the native-born, churches play a very important role as spaces of livelihood. In these contexts, particularly "ethnic" churches, that is, congregations made up of immigrants who speak the same language or come from the same country, or even village, often serve as quasi social service agencies, providing diverse forms of material and moral support, ranging from English classes to legal assistance with immigration matters to meeting space for labor unions and other civic organizations working on behalf of immigrants. By sponsoring activities like festivals, soccer leagues, family picnics, they also offer entertainment and catharsis in the face of heavy work schedules and a hostile environment. Finally, using the native language – be it Spanish or Portuguese – and by preserving and re-enacting cultural and religious traditions of the societies of origin, congregations can help immigrants carve out new spaces of livelihood, often transposing the landscapes of the homeland onto the new places of settlement.⁵⁴

Ethnic congregations undoubtedly carry their own power dynamics, often participating in the exploitation of trusting co-ethnics.⁵⁵ However, these churches may also be enabling a different kind of visibility, one that makes immigrants visible to each other as human beings, as members of a welcoming, familiar, and intimate community, while rendering them temporarily invisible and safe in sacred spaces vis-à-vis a regime of visibility that seeks to make them simultaneously visible as illegal aliens – through federal, state, and local laws and mechanisms of surveillance – and invisible as legitimate members of the nation-state (by deporting them).

Multi-racial congregations and movements, which have made the conscious choice of welcoming and advocating for immigrants, regardless of their legal

⁵⁴ Timothy Steigenga, Manuel Vásquez, and Philip Williams, "A Place to Be: New and Old Geographies of Latin American Migration in Florida and Beyond." In *A Place to Be: Brazilian, Guatemalan, and Mexican Immigrants in Florida's New Destinations*, edited by Philip J. Williams, Timothy J. Steigenga, and Manuel A. Vásquez (New Brunswick, NJ: Rutgers University Press, 2009), p. 216.

⁵⁵ See, for example, Kenneth Guest, *God in Chinatown: Religion and Survival in New York's Evolving Immigrant Community* (New York: NYU Press, 2003).

status, can also potentially offer alternative forms visibility and voice, of “presencing” without papers. One noteworthy example is the New Sanctuary Movement. The original Sanctuary Movement drew its inspiration from Liberation Theology, forming an interfaith network that during the 1980s offered safe haven to immigrants from Central America fleeing political violence perpetrated primarily by authoritarian military regimes supported by the Reagan Administration. Drawing inspiration from the original movement, the New Sanctuary Movement (NSM) emerged out of a meeting on January 29, 2007, in Washington, DC, which brought together representatives from eighteen cities, twelve religious traditions, and seven denominational and interdenominational organizations. In accompanying immigrant families who are facing the threat of being separated by detention and deportation, the NSM pledges to:

Respond as a hospitable and welcoming community to those immigrant families and communities, and we respond prophetically to the unjust system that cause their suffering (including unfair trade policies). We are committed to amplifying the voices of these families so that they can be heard by those whose decisions affect their lives. We seek to encourage immigrant families, transform and deepen the commitment of congregations . . . and promote the vision of a society characterized by a culture of hospitality. In all this, we draw from the wells of an ongoing movement of people of faith committed to justice.⁵⁶

An important dimension of the New Sanctuary Movement is to treat immigrants not simply as victims who need the paternalistic protection of citizens, a discourse that in some ways reproduces their othering, but as witnesses who can speak about their own histories, needs, aspirations, relationships, and talents. This is why the movement “amplifies” the voices of immigrants rather than speaking for them.

Another notable example of alternative ways of enabling unauthorized immigrants to re-present themselves on their own terms is Alterna, an intentional “Christian missional community comprised of U.S. citizens and Latin American immigrants committed to faithful acts of accompaniment, advocacy, and hospitality.” Founded in Le Grange, Georgia, Alterna documents alleged violations of human rights and detention standards and organizes vigils for the detainees at the huge Stewart Detention Center in Lumpkin, Georgia, which is run by Corrections Corporation of America. More importantly, Alterna has set up *El Refugio*, a hospitality house at the gates of Stewart Detention Center that allows the family and friends of those who have been detained to visit them and be close to them. Here Alterna is faithful to the principle of “relocation,” which challenges the denial of coevalness by bringing citizens out of their life of comfort to live with and learn first-hand from immigrants. “We, the members of Alterna, are committed to following the *kenosis* example of Christ who emptied himself, took on the form of a servant and made his home among us, a community in need of redemption. For Alterna, relocation means living a life of

⁵⁶<http://www.sanctuarymovement.org/content/about-us>

simplicity and in solidarity with migrants, particularly with undocumented immigrants and with the poor in Latin America (Philippians 2:5-11)."⁵⁷

Building from Jacques Derrida's work on hospitality and Emmanuel Levinas's on the irreducibility of enfleshed alterity that we encounter face-to-face,⁵⁸ we may say that the New Sanctuary Movement and Alterna have opened themselves to the risks, surprises, and promises of welcoming migrants regardless of their status. Derrida posits that unconditional hospitality is an impossible ethical horizon, since traditionally hospitality means that "[t]he host remains the master in the house, the country, the nation, he controls the threshold, he controls the borders, and when he welcomes the guest he wants to keep the mastery" (Derrida 1999: 69). In contrast, unconditional or "pure" hospitality is "without conditions and . . . does not seek to identify the newcomer, even if he is not a citizen." It entails an "opening without horizon, without horizon of expectation, an opening to the newcomer whoever that may be. . . . For unconditional hospitality to take place you have to accept the risk of the other . . ." (70-71).

In their struggle to live by the principles like relocation and values like kenosis, the NSM and Alterna may be, however precariously, serving as incubators of a new ethics, not simply of cosmopolitanism but of de-colonized singularity, of the full recognition of the Other, not as a faceless threat to be kept at bay, controlled, and punished, not the Other whose subjecthood is over-determined by colonial racism and patriarchy or exhausted by the contingent and reifying logic of the neo-liberal nation-state, but as a unique and complex living Self whose well-being is tightly intertwined with the flourishing of the whole community.

Walter Dignolo points to the rise of a "de-colonial cosmopolitanism," "the becoming of a pluri-versal world order built upon and dwelling on the global borders of modernity/coloniality."⁵⁹ Such a de-colonial cosmopolitanism "is a proposal from the 'margins.' The margins are places, histories, and people whom non-being Christian and secular Europeans, without dwelling in that particular history, were forced to deal with it, from the 'barbarian Indians' and enslaved Africans in the sixteenth and seventeenth centuries, to China and India in the nineteenth century, to Iran and Iraq in the twentieth . . ."⁶⁰ The question, then, is how religious organizations that operate within the framework of Christianity, a religion that was central in the imperial enterprise in the Americas, Africa, and Asia, can offer a real break from the power regimes of the past that are now being re-tooled in the new transnational panopticon? If the New Sanctuary Movement and Alterna are an indication, the assertion of radical divine alterity⁶¹ may be key to the affirmation of the "infinity of the Other," to

⁵⁷For more on Alterna, see Marie Marquardt et al. *Living "Illegal": The Human Face of Unauthorized Immigration* (New York: New Press, 2013).

⁵⁸See Derrida (2000) and Levinas (1969).

⁵⁹Walter Dignolo, "Cosmopolitanism and the De-Colonial Option." *Studies in Philosophy and Education* 29 (2010): p. 117.

⁶⁰Ibid., p. 125.

⁶¹Working within the phenomenological tradition, Thomas Csordas argues that the "kernel" of religion is "the existential aporia of alterity itself." In other words, religion is primarily concerned with the otherness that we encounter as constitutive of our incarnate being-in-the-world, and the "sacred," "the holy," and/or "god" are culturally and historically bound signifiers of the radicalness of that otherness. In "Asymptote of the

borrow from Levinas, of his/her sheer transcendence and irreducibility in the face of dichotomous, totalizing, and disembodied categories of Western modernity redeployed by the new panoptical state. In turn, this affirmation of the numinous in the flesh of those at the margins of society, including undocumented immigrants, may help to push the limits of conditional hospitality.⁶²

The larger socio-political impact of these grassroots experiments in conviviality remains to be seen. Given the liquid fear that drives the transnational panopticon, we need to develop an “unpanicked multiculturalism” that allows us to experience difference “in everyday lives away from the heat of moral panic and state- and media-driven anxieties of social cohesion, provid[ing] an invaluable site[s] for considering productive practices of intercultural cohabitation.”⁶³ In creating spaces of embodied, face-to-face “quotidian transversality”⁶⁴ that foster full inter-subjective engagement, reciprocal responsibility, and mutual de-centering and transformation, this new multiculturalism will also enable us rethink our notions of belonging, recognition, and civic participation in more flexible and inclusive ways.

At a time of panicked nationalisms, nativisms, and fundamentalisms, it is hard to develop an ethic of inter-corporality and co-habitation. How do we go from the promising forms of “local liveability . . . the micropolitics of everyday social contact and encounter”⁶⁵ such as Alterna to an effective critique of global biopolitics? How do we ensure the sustainability and transposability “situated sociabilities” of reciprocal recognition in the context of a public arena that does not recognize some immigrants as humans and hyper-identifies them through stereotypes of toxicity? Perhaps these situated sociabilities can serve as incubators of “subaltern counterpublics,” parallel spaces “where members of subordinated social groups invent and circulate counter-discourses [and counter-practices], which in turn permit them to formulate oppositional interpretations of

Ineffable: Embodiment, Alterity, and the Theory of Religion.” *Current Anthropology* v45n2 (2004): p. 167.

⁶²Derrida points to Pauline notions of hospitality, as when Paul speaks in Galatians 6:10 of inclusive membership in the “household of faith” and declares in Ephesians 2: 19-20: “Consequently, you are no longer foreigners and strangers, but fellow citizens with God’s people and also members of his household, built on the foundation of the apostles and prophets, with Christ Jesus himself as the chief cornerstone.” Mignolo recognizes the potential decolonizing role of “the spiritual option,” which is “coming not from established and institutional religions but from what [he] describe[s] as ‘the decolonization of religions and the liberations of spirituality’, namely the religious formations of indigenous peoples and enslaved Africans. Among other things, this option challenges the sharp divide between theology and secularism that is at the heart of Western modernity. In Walter Mignolo, “The Global South and World Disorder.” *Journal of Anthropological Research* 67 (2011): p. 183.

⁶³Greg Noble, “Everyday Cosmopolitanism and the Labour of Intercultural Community.” *Everyday Multiculturalism*. Ed. A. Wise and S. Velayuthan (New York: Palgrave, 2009), pp. 50-51.

⁶⁴See Amanda Wise, “Everyday Multiculturalism: Transversal Crossings and Working Class Cosmopolitans.” *Everyday Multiculturalism*, edited by Amanda Wise and S. Velayuthan. (New York: Palgrave, 2009), pp. 21-45.

⁶⁵Ash Amin, “Ethnicity and the Multicultural City: Living with Diversity” *Environment and Planning A* 34 (2002): p. 959.

their identities, interests, and needs.”⁶⁶ Certainly, the DREAMers’ partial-yet-significant victory in pressuring the Obama Administration to pass the “Deferred Action for Childhood Arrivals” act, gives us some reason for hope. Their success was due in large part to the strategic use of practices of civil disobedience, including marches, sit-ins, and witnessing, borrowed from the Civil Rights Movement. By publically daring the authorities to arrest them as they protested in city halls, state legislatures, and in front of the White House and the U.S. Capitol, they made themselves visible in their own terms, defying the hegemonic logic in neo-liberalism of rendering unauthorized immigrants hyper-visible as criminals, rats, and bearers of anchor babies, and invisible as valuable community members.

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⁶⁶ Nancy Fraser, *Justice Interruptus: Critical Reflections on the “Postsocialist” Condition* (New York: Routledge, 1997), p. 81.